

JUDGMENT SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

Writ Petition No. 5398 of 2023

Mst. Samira Bibi
versus
Addl. District Judge and 03 others

J U D G M E N T

Date of hearing	06-05-2026
Petitioner by:	Ms. Rabia Manal Khan, learned Advocate
Respondents No. 3 and 4 by:	Mr. Arshad Hussain, learned Advocate

Sultan Tanvir Ahmad, J:– This petition is directed against judgment and decree dated 11.03.2023 passed in Family Appeal No. 57-13-2023, whereby, the learned Appellate Court has partially accepted the appeal, modifying the decree of the learned Family Court to the effect that the petitioner is entitled to recover Rs.16,00,000/- instead of the land given in column No. 16 of the nikahnama dated 05.01.2015 (the ‘*nikahnama*’).

2. Ms. Rabia Manal Khan, learned Advocate for the petitioner has submitted that alternate price of specified land (i.e. Rs.16,00,000/-) contained in aforesaid column of the *nikahnama* merely reflects the price of the land at the time of marriage, which was contracted on 05.01.2015 and the learned Appellate Court misinterpreted the relevant clause while permitting to recover the amount. She has submitted that if at all, instead of the actual land, the alternate amount is required to be given its value should be equal to the amount that one can fetch from the market at the time of ascertaining its value. She referred to paragraph No. 10 of *Dr. Asma Ali*

case¹ and stated that the Honourable Supreme Court, in similar circumstances, has reached to the conclusion that since in the relevant clause market value of land at the time of marriage is mentioned, therefore, it is just to permit the bride / lady to recover the interest to compensate her.

3. Mr. Arshad Hussain, learned Advocate for respondents No. 3 and 4 has supported the impugned judgment and stated that correct alternate value has been fixed by the learned Appellate Court.

4. Heard. The documents available on the record have been perused.

5. It has been repeatedly resolved that nikahnama is a civil contract, which consists of terms agreed by the parties and its clauses are to be construed in the light of intention of the parties. The question regarding the intention of the parties relating to dower agreed between them at the time of execution of nikahnama is to be determined on the settled principles and not on the basis of titles or headings of the columns of the prescribed nikahnama, which are neither conclusive nor sacrosanct. Upon execution of nikahnama a bride cannot be deprived of her right relating thereto in any manner². It is foremost duty of Courts dealing with disputes arising out of the terms entered in a nikahnama, to ascertain the true intent of the parties and to give effect thereto accordingly, and not be limited and restricted by the form of the heading of the particular column wherein those terms are mentioned³. It is equally settled that any ambiguity in a contract is to be resolved by ascertaining the real intention of the parties and the contract has to be read as a whole. The

¹ “*Dr. Asma Ali versus Masood Sajjad and others*” (PLD 2011 Supreme Court 221)

² “*Mst. Fakhra Jabeen and others vs Wasif Ali and others*” (PLD 2026 Supreme Court 20)

³ “*Haseen Ullah vs Mst. Naheed Begum and others*” (PLD 2022 Supreme Court 686)

Court cannot imply something that is inconsistent with the expressed terms. In *Muhammad Yousaf*⁴ case the Honourable Supreme Court has observed that crucial aspect of social and cultural norms prevalent in the society should be kept in view, which prevent bride from her freedom to settle the terms and conditions as a person having an informed understanding of her right. This necessitates the Courts to satisfy while interpreting the contents of clauses of nikahnama, that the wife, at the time of its execution, understood the same and was informed of her right. No party can derive benefit from introducing or creating any ambiguity. Following extract from paragraph No. 7 of the said judgment will be beneficial to be reproduced:-

*“The courts, while interpreting the contents and terms and conditions of a Nikah Nama, also have to take into consideration the factor of free consent of the bride and her freedom to settle the terms and conditions as a person having an informed understanding of her rights. This is crucial in the context of the social and cultural norms generally prevalent in the society. **If an ambiguity or doubt arises in relation to the terms and conditions of the Nikah Nama, an entry or column thereof, then the benefit ought to go in favor of the wife if there does not exist preponderance of evidence on record to establish that she had been informed of her rights, she understood each column of the Nikah Nama, and she had the freedom to negotiate and settle the terms and conditions out of free consent.....”***

(Emphasis Supplied)

6. Even when the parties have equal bargaining strength the objective test of interpretation is to be applied, which a reasonable man who is not party to the contract would derive from a bare reading of that term⁵. The correct interpretation of a contract may be achieved by a greater emphasis on the factual matrix, for example because of their

⁴ “*Muhammad Yousaf vs Huma Saeed and others* (2024 SCMR 1078)

⁵ “*WI-Tribes (Pvt.) Ltd. through Head of Legal and Regulatory Affairs versus Pakistan Telecommunication Authority through Chairman*” (2024 CLC 937)

informality, brevity or absence of skilled professional assistance⁶.

7. Coming to the facts of the case, the marriage between the petitioner-lady and respondent No. 3 was contracted on 05.01.2015. The stipulation in front of column No. 16 of the *nikahnama* is not disputed before this Court, which reads:-

"جائیداد رقبہ دو ایکڑ موضع محمد پور کا دولہا انتقال کر کے دیگا اپنی دلہن کو قیمت رقبہ
16 کنال کا سولہ لاکھ روپیہ - /1600000"

8. Respondent No. 3 appeared as DW-1 and categorically stated that at the time of *nikah* the value of the property was Rs.16,00,000/- which is having metalled road on its one side. A reasonable person, who is not party to the contract, would derive from bare reading of the above reproduced terms that specific two (2) acres land was undertaken to be given to the petitioner-lady, which had value of Rs.16,00,000/- at the time of marriage.

9. For what has been discussed above, I am of the view that the learned Appellate Court has hardly made any effort to reach to the correct intention of the parties and properly interpret the clause, therefore, the impugned judgment to this extent is *set-aside* and the matter is remanded to the learned Appellate Court where it will be deemed to be fixed on 01.06.2026.

10. Allowed in the above terms.

(Sultan Tanvir Ahmad)
Judge

Announced on 21.05.2026

Iqbal*

Judge

⁶ “Capita Insurance Services Limited versus Wood ” (2017 SCMR 1116)